

PHILIP MORRIS LIMITED

A.C.N. 004 694 428

Facsimile Message

*to Har
Hamber
Lutten
Lutten*

TO: DISTRIBUTION
FROM: GREG FOWLER
DATE: SEPTEMBER 17, 1993.
REF: A:BRCPRO.GLF3 PAGE 1 OF 12
SUBJECT: BURSWOOD RESORT CASINO PROSECUTION

I am pleased to report that the Western Australian court dismissed the Health Department's ETS-based claims against Burswood Casino.

Attached is the TIA's Press Release and the court's Reasons for Decision. The court stated its conclusion as follows:

Whilst ETS is annoying and of discomfort to non smokers it has not been proved at the required standard, or at all, in this prosecution, that it is a risk to the health of the employees at the Casino.

At pages 8-9 of the Reasons, the Court considered but rejected the EPA Risk Assessment's "conclusion" on ETS and respiratory illness.

Regards,

for
Gregory L. Fowler

for GREGORY L. FOWLER

Distribution: David Davies
Judy Hargrave
Peter Hobday
Tim Lindon
Bob Northrip
Steve Parrish
Lee Pollak
David Schechter
Chuck Wall

2501172720